

26STCV11297 26STCV11297

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Case Number: 26STCV11297 Hearing Date: August 19, 2026 Dept: 407

Tentative Ruling

Judge Brock Hammond, Department 407

HEARING DATE: August

19, 2026 TRIAL

DATE: Not set

CASE: Justin Davis, et al. v. City of Los Angeles

CASE NO.: 26STCV11297

DEFENDANT

CITY OF LOS ANGELES' DEMURRER TO THE COMPLAINT OF PLAINTIFFS JUSTIN DAVIS AND
QUINCEE LOUIS WORRELL

MOVING PARTY: Defendant

City of Los Angeles

RESPONDING PARTY: No opposition

Plaintiffs

Justin Davis ("Davis") and Quincee Louis Worrell ("Worrell") were employed by defendant City of Los Angeles ("City" or "Defendant") as property officers in the Evidence and Property Management Division of the Los Angeles Police Department. Plaintiffs are African American men. Plaintiffs allege that, during the probationary period of their employment, they were subjected to race

discrimination. Davis complained about being subjected to discriminatory treatment, disparate discipline, and unequal training opportunities based on race. Worrell complained about harassment and discriminatory treatment by his supervisor.

Plaintiffs allege that, as a result of making protected complaints, their employment was terminated.

I. BACKGROUND

On April 8, 2026, Plaintiffs filed a Complaint action against Defendant asserting claims for (1) race discrimination, (2) FEHA retaliation, and (3) failure to prevent discrimination.

On June 25, 2026, Defendant filed this demurrer to Plaintiffs' complaint.

At the time of this writing, the demurrer is unopposed.

II. LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) "Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are subject to judicial notice." (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.)

III. DISCUSSION

City argues the Complaint is subject to demurrer on the following grounds: (1) the Complaint improperly joins plaintiffs; (2) neither Plaintiff states a claim for FEHA retaliation; (3) Plaintiffs fail to state a claim for failure to prevent discrimination and retaliation. The court addresses these demurrers in turn.

A. Misjoinder of Parties

Code of Civil Procedure section 430.10(d) provides that a demurrer may be brought on the grounds of misjoinder or defect of parties. (Code Civ. Proc., § 430.10(d).) “Demurrers on the ground of misjoinder lie only when the defect appears on the face of the complaint or matters judicially noticed.” (Royal Surplus Lines Ins. Co., Inc. v. Ranger Ins. Co. (2002) 100 Cal.App.4th 193, 198.)⁶ A demurring defendant must show it will be prejudiced by the alleged misjoinder in order to prevail. (Id., citing 5 Witkin, Cal. Procedure (4th ed. 1997) Pleading, § 926, pp. 385–386.)⁷ Here, the City fails to make any showing it will be prejudiced by the alleged misjoinder. Having failed to make the requisite showing, the Complaint does not fail on this ground.

Further, even if the City had made some showing of prejudice, it is not so clear that Plaintiffs have misjoined their claims. “There may be permissive joinder of parties plaintiff under section 378 in two situations: (1) Where there exists both a common interest in the subject of the action and any question of law or fact common to all the plaintiffs [citation], and (2) where there exists both a right to relief arising out of the same transaction or series of transactions and any common question of law or fact [citation].” (Coleman v. Twin Coast Newspaper, Inc. (1959) 175 Cal.App.2d 650, 653.)

Moe v. Anderson (2012) 207 Cal.App.4th 826, a case upon which the City relies, is instructive. In Moe, the court found misjoined the claims of two patients who suffered assaults from the same doctor at two entirely distinct times, with no relationship between the two patients. (Moe, at p. 829.) This fact pattern broadly fits the case at bar.

However, the Moe court also found those plaintiffs had properly joined their claims against the doctor’s employer (id., at p. 835), just as Plaintiffs here have joined their claims against the City for their employment in the same position of the same Los Angeles Police Department station.

The demurrer based on misjoinder of parties is **OVERRULED**.

B. Second Cause of

Action for Retaliation in Violation of FEHA

The City argues the second cause of action for retaliation is subject to demurrer because the Complaint fails to assert FEHA retaliation as to either Plaintiff. The argument lacks merit.

To plead FEHA retaliation, an employee must allege that: (1) he engaged in protected activity, (2) the employer subsequently took adverse employment action against him, and (3) there was a causal connection between the protected activity and the adverse employment action. (*Miller v. Dep't of Corr.* (2005) 36 Cal.4th 446, 472 (citation omitted); Gov. Code, § 12940(h).) "Close proximity in time of an adverse action to an employee's resistance or opposition to unlawful conduct is often strong evidence of a retaliatory motive." (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1020, quoting *Taylor v. City of Los Angeles Dept. of Water & Power* (2006) 144 Cal.App.4th 1216, 1235; see also *Le Mere v. Los Angeles Unified School Dist.* (2019) 35 Cal.App.5th 237, 243 [noting that several federal cases held intervals of more than a few months were too long to support causation].)

Here, the Complaint alleges, among other things, that Davis complained to his supervisor about discriminatory treatment in August 2025 and was terminated in October 2025. (Complaint, ¶¶ 44-45, 53.) As to Worrell, the Complaint alleges, among other things, that Worrell made complaints about race-based discrimination, harassment and retaliation, including at a confidential OMBUDS meeting on March 6, 2024, and was terminated the following day. (Complaint, ¶¶ 44-46.) The Complaint alleges that each Plaintiff engaged in protected activity (complaining about discrimination and/or harassment and retaliation), that the City subjected each Plaintiff to an adverse employment action (termination), and a causal link (close temporal proximity between protected activity and termination). Each element is sufficiently alleged. The City cites *Arteaga v. Brink's, Inc.* (2008) 163 Cal.App.4th 327 for the proposition that temporal proximity alone is not sufficient. However, the City's reliance on *Arteaga* is misplaced. *Arteaga* arose from an appeal of an order granting summary judgment. The procedural posture is different. At the pleading stage, the court finds the Complaint sets forth sufficient allegations to state a cause of action for FEHA retaliation.

The demurrer to the second cause of action is OVERRULED.

C. Third Cause of

Action for Failure to Prevent Discrimination and Retaliation

The City argues the third cause of action fails because “the Complaint makes no effort to explain how the City failed to take steps to prevent any alleged discrimination from occurring before it occurred. Plaintiffs do not describe how the City failed to act or the measures it should have taken to prevent discrimination before Plaintiffs were terminated.” (Dem., p. 6:4-7.) The argument lacks merit.

A cause of action for failure to prevent discrimination or retaliation requires the following elements: (1) plaintiff was an employee of defendant; (2) plaintiff was subjected to discrimination/retaliation in the course of employment; (3) defendant failed to take all reasonable steps to prevent the discrimination/retaliation; (4) plaintiff was harmed; and (5) defendant's failure to take all reasonable steps to prevent discrimination/retaliation was a substantial factor in causing plaintiff's harm. (CACI No. 2527; *Jumaane v. City of Los Angeles* (2015) 241 Cal.App.4th 1390, 1410.) “The employer's duty to prevent discrimination and retaliation is affirmative and mandatory.” (Northrop Grumman Corp. v. Workers' Comp. Appeals Bd. (2002) 103 Cal.App.4th 1021, 1035.)

Here, the Complaint alleges the following:

53. Defendant knew or should have known of the discriminatory and retaliatory conduct alleged herein against Plaintiffs. Plaintiff DAVIS informally complained to supervisor Celeste in early August 2025 about being singled out and receiving unequal training compared to white coworker Joel. Plaintiff DAVIS raised concerns during weekly check-ins with supervisors about the discriminatory treatment he was experiencing. Sergeant Carnado warned Plaintiff DAVIS in October 2025 that supervisors were bullying him. Plaintiff WORRELL filed multiple 15.7 forms in November and December 2023 complaining about harassment by supervisor Nakia Jones-Kemp. Plaintiff WORRELL met with Commanding Officer Betty Collins on December 6, 2023, to report the discriminatory treatment. Plaintiff WORRELL attended a confidential OMBUDS meeting on March 6, 2024, where he reported race-based discrimination, harassment, and retaliation.

Despite being notified of the discrimination and harassment, Defendant failed to take timely and appropriate corrective action to prevent or correct the unlawful conduct. Defendant failed to adequately investigate Plaintiffs' complaints of discrimination and harassment. Defendant failed to discipline supervisors Lisa Kruger, Lillian Chivera, Elizabeth Cepeda, and Nakia Jones-Kemp who engaged in discriminatory conduct and harassment against Plaintiffs. Defendant failed to discipline white probationary employee Joel who engaged in misconduct, including cursing at staff and arriving forty minutes late, while subjecting Plaintiffs to harsher discipline for lesser or no infractions. Defendant failed to implement adequate policies to prevent discrimination and retaliation. Defendant failed to train management and supervisory personnel on their obligations under anti-discrimination laws.

These allegations sufficiently describe the steps the City failed to take to prevent discrimination and retaliation. To summarize, the Complaint alleges that each Plaintiff complained of discrimination and retaliation, yet no action was taken. The failure of the Plaintiffs' respective supervisors to act can be interpreted as a ratification of the discriminatory and retaliatory conduct. Further, contrary to the City's position, a failure to prevent claim does not lie solely upon an employer's failure "to take steps to prevent any alleged discrimination from occurring before it occurred." The demurrer fails.

The demurrer to the third cause of action is OVERRULED.

IV. CONCLUSION

The demurrers are Overruled.

Defendant is ordered to serve and file its Answer within 5 days of the date of this order.

Plaintiff to give notice, unless waived.

Dated: August 19,
2026

Brock Hammond

Judge of the Superior Court